

**DEPARTMENT THREE
JUDGE STEPHEN GIZZI
707-207-7303
TENTATIVE RULINGS SCHEDULED FOR
TUESDAY, JUNE 2, 2026**

The parties may appear via Zoom with the exception of trials, trial management conferences, order for examinations and mandatory settlement conferences. The information for the Zoom meeting is set forth below.

The tentative ruling shall become the ruling of the court unless a party desiring to be heard contacts the judicial assistant of the department hearing the matter by 4:30 p.m. on the court day preceding the hearing, and further advises that such party has notified the other side of its intention to request a hearing. A party requesting a hearing must notify all parties of the request to be heard by 4:30.

**LIBBY, et al. v. COSTELLO
Case No. CU24-04147**

Motion for Mandatory Relief to Vacate Dismissal of Action and to Reinstate Case

TENTATIVE RULING

Though Plaintiff counsel attempts to characterize this most recent nonappearance as a single incident undeserving of terminating sanctions, the record shows the entire case has been an ongoing demonstration of negligent representation by this firm. Earlier admonitions and sanctions imposed by the court did nothing to cause counsel(s) of record to correct their failures. Terminating sanctions is not something the court imposes without multiple incidents and good cause. Here, despite ample warning, plaintiff did not even respond to the OSC for terminating sanctions when issued on March 2, 2026. The Motion to Vacate the Dismissal is DENIED.

**KANDEL v. KIA AMERICA, INC., et al.
Case No. CU25-00796**

Application to Appear Pro Hac Vice

TENTATIVE RULING

The unopposed application of Cary A. Slobin, Esq. to appear pro hac vice for Defendants Kia America, Inc. and Kia Corporation is GRANTED.

ELTON EALY v. GENERAL MOTORS, LLC
Case No. CU25-03660

Demurrer

TENTATIVE RULING

Defendant GENERAL MOTORS, LLC's demurrer directed to Plaintiff ELTON EALY's complaint is overruled as moot. Plaintiff filed a first amended complaint on May 18, 2026, within his time for filing opposition to the demurrer. (Code Civ. Proc., § 1005, subd. (b).) A timely filed amended pleading supersedes the original pleading and so moots a challenge to the now-defunct original pleading. (*Sylmar Air Conditioning v. Pueblo Contracting Services, Inc.* (2004) 122 Cal.App.4th 1049, 1054.)

EDWARDS, et al. v. FUNG, et al.
Case No. cu25-08969

Demurrer by Defendants MARIA RILEY, BRIAN FUNG, BLOSSOM OWYANG, and RENNIE OWYANG to Plaintiffs' Complaint

TENTATIVE RULING

C.C.P. §430.10(e) authorizes a demurrer to be filed when "The pleading does not state facts sufficient to constitute a cause of action."

In general, a complaint must contain "charging allegations"—allegations against each defendant charging them with some wrongful act. 1 Edmon & Karnow [Weil & Brown], Civil Procedure Before Trial (The Rutter Group 2025) §6:85, p. 28 [charging allegations must run against Doe defendants]; §6:123, p. 39 ["ultimate facts"—facts sufficient to state a cause of action must be alleged].

A plaintiff must be a "real party in interest as to the claim being asserted.

First, plaintiff must be the "real party in interest" with respect to the claim sued upon. Except as otherwise provided by statute, "every action must be prosecuted in the name of the real party in interest." [CCP § 367; see *Dino v. Pelayo* (2006) 145 CA4th 347, 353, 51 CR3d 620, 624, fn. 2 (citing text); *Cloud v. Northrop Grumman Corp.* (1998) 67 CA4th 995, 1004, 79 CR2d 544, 549 (citing text)]

"Real Party in Interest" Defined: Generally, the real party in interest is the person who has the right to sue under the substantive law. It is the person who owns or holds title to the claim or property involved, as opposed to others who may be interested or benefited by the litigation. [*Gantman v. United Pac. Ins. Co.* (1991) 232 CA3d 1560, 1566, 284 CR 188, 191; *Jasmine Networks, Inc. v.*

Sup.Ct. (Marvell Semiconductor, Inc.) (2009) 180 CA4th 980, 991, 103 CR3d 426, 433—“while superficially concerned with procedural rules,” CCP § 367 “really calls for a consideration of rights and obligations”]

Real party in interest issues are often discussed in terms of plaintiff’s “standing to sue.” [See Windham at Carmel Mtn. Ranch Ass’n v. Sup.Ct. (Presley) (2003) 109 CA4th 1162, 1172, 135 CR2d 834, 841; Blumhorst v. Jewish Family Services of Los Angeles (2005) 126 CA4th 993, 1001, 24 CR3d 474, 479—person invoking judicial process must have a real interest in the ultimate adjudication, having suffered (or about to suffer) an “injury of sufficient magnitude reasonably to assure that all of the relevant facts and issues will be adequately presented”; Iglesia Evangelica Latina, Inc. v. Southern Pac. Latin American Dist. of Assemblies of God (2009) 173 CA4th 420, 445, 93 CR3d 75, 94—party must have “some special interest to be served or some particular right to be preserved or protected” (internal quotes omitted)]

This state standing criterion has some “commonalities” with federal Article III standing. [Limon v. Circle K Stores Inc. (2022) 84 CA5th 671, 697-700, 300 CR3d 572, 591-593 (using “beneficially interested” test for standing otherwise associated with standing under CCP § 1086 (writs of mandate), i.e., party must have suffered injury that is “(a) concrete and particularized, and (b) actual or imminent, not conjectural or hypothetical”) (internal quotes omitted)]

Standing criteria depends on the specific right, such as a statutory right, being enforced. [See Limon v. Circle K Stores Inc., supra, 84 CA5th at 692-693, 300 CR3d at 586-587; and ¶ 2:3.1, 2:39.9 ff.]. 1 Edmon & Karnow [Weil & Brown], Civil Procedure Before Trial (The Rutter Group 2025) §§2:1-2:2, pp. 1-2.

See also Friendly Village Community Assn., Inc. v. Silva & Hill Constr. Co. (1973) 31 Cal.App.3d 220, 224 [“if the complaint shows that (a plaintiff) is not a real party in interest and therefore lacks “standing” to sue, a “general” demurrer will be sustained”].

Neither KEITH ETHAN YEE (“YEE”) nor EDWARD LEOPOLD NOVAK (“NOVAK”) appear to have any standing to pursue claims based upon injuries or losses claimed by PEGGY S.K. EDWARDS (“EDWARDS”).

The court therefore sustains the demurrer by Defendants MARIA RILEY, BRIAN FUNG, BLOSSOM OWYANG, and RENNIE OWYANG (the “demurring defendants”) to the entirety of the complaint as to Plaintiffs YEE and NOVAK, without leave to amend.

As to the claims by EDWARDS, most of the asserted causes of action do not state a cause of action against the demurring Defendants (or for that matter, any of the defendants).

The complaint contains some very broad and vague claims that EDWARDS suffered loss or damages, and that all of the Defendants misused her financial accounts; “have

taken unconscionable advantage of . . . Edwards, a disabled senior”; and “fraudulently deprived [EDWARDS] of her rightful inheritance with the estate of Ivan Kim.”

The court finds these allegations insufficiently vague to state any viable cause of action in a general civil case such as the one at present (and some, such as those regarding the inheritance, can only be asserted in the probate court case involving the subject probate estate). Capra v. Capra (2020) 58 Cal.App.5th 1072, 1084 [probate court has in rem jurisdiction over a decedent’s assets, and enforcement of a probate court’s orders].

The court additionally finds that there is no reasonable possibility that most of the causes of action alleged against the demurring defendants could be amended to allege any viable cause of action on behalf of EDWARDS against the demurring defendants. These include the 2nd cause of action for breach of implied covenant of good faith and fair dealing; the 3rd cause of action for common counts; the 4th cause of action for violation of the ADA; and the 7th cause of action for fraud.

As to the 2nd cause of action, the implied covenant of good faith and fair dealing is implied in a contract between the parties.

There is implied in every contract a covenant by each party not to do anything which will deprive the other parties thereto of the benefits of the contract . . . This covenant not only imposes upon each contracting party the duty to refrain from doing anything which would render performance of the contract impossible by any act of his own, but also the duty to do everything that the contract presupposes that he will do to accomplish its purpose. 1 Witkin, Summary of California Law (11th ed. 2017) Contracts, §822, pp. 878-879.

The covenant implied in the contract depends upon the purposes of the contract.

The covenant of good faith and fair dealing is implied in every contract as a method to protect the interests of the parties in having the contractual promises and purposes performed. Because contracts differ, the nature and extent of the duties owed under the implied covenant are also variable and "will depend on the contractual purposes." Love v. Fire Insurance Exchange (1990) 221 Cal.App.3d 1136, 1147 [quoting Egan v. Mutual of Omaha Ins. Co. (1979) 24 Cal.3d 809, 818].

The complaint does not allege any contract involving any of the Plaintiffs and any of the Defendants.

As to the third cause of action for common counts, this is a simplified form of pleading some sort of money indebtedness. 1 Edmon & Karnow [Weil & Brown], Civil Procedure Before Trial (The Rutter Group 2025) §6:126, p. 40.

The essential allegations are minimal, but include alleging a statement of indebtedness in a certain sum, what consideration was provided by the plaintiff to the defendant, and nonpayment. Farmers Ins. Exchange v. Zerin (1997) 53 Cal.App.4th 445, 460.

When a common counts claim is based on a set of facts specifically pled to support another cause of action, a demurrer to the common count stands or falls with the demurrer to that other cause of action. Zumbrun v. University of Southern California (1972) 25 Cal.App.3d 1, 14-15.

Plaintiffs' complaint alleged no certain sum owed, no consideration provided, and no nonpayment.

As to the 4th cause of action for violation of the Americans With Disability Act (ADA), the ADA applies only against business establishments. Brennon B. v. Superior Court (2020) 57 Cal.App.5th 367, 401.

The complaint does not allege that any of the demurring defendants own or operate a business establishment.

As to the 7th cause of action for fraud regarding EDWARDS' alleged inheritance, as earlier noted, the probate court would have sole jurisdiction over any such claims.

There is an additional, independent basis supporting the sustaining of this demurrer to the entirety of the complaint.

A demurrer can be appropriate where the complaint is "uncertain," or, in other words, "ambiguous and unintelligible." C.C.P. section 430.10(f).

[I]n pleading, the essential facts upon which a determination of the controversy depends should be stated with clearness and precision so that nothing is left to surmise. Those recitals, references to, or allegations of material facts which are left to surmise are subject to special demurrer for uncertainty. Ankeny v. Lockheed Missiles & Space Co. (1979) 88 Cal.App.3d 531, 537.

A demurrer for uncertainty can be sustained where the complaint is so bad that the defendant cannot reasonably respond, or cannot reasonably determine what issues must be admitted or denied, or what counts or claims are directed against him or her. Khoury v. Maly's of Calif., Inc. (1993) 14 Cal.App.4th 612, 616.

The court also finds these allegations to be uncertain, to serve as an additional basis for sustaining the demurrer as to all causes of action.

The demurrer as to EDWARDS is therefore sustained to the entirety of the complaint, with 30 days leave to EDWARDS to file an amended complaint to state with more specificity any claims against demurring Defendants not expressly precluded by the

ruling above. This 30 days leave to file an amended complaint runs from the date of this hearing.

The court clarifies that EDWARDS cannot be represented in any subsequent filings in this case by any person other than herself, if that person is not a licensed California attorney.

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